

****11.12.2023****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing has completed an investigation into the operator Veranda Obor S.A. and found a violation of the provisions of Article 32 paragraph (1) letter b) and Article 32 paragraph (2) of Regulation (EU) 2016/679 in relation to the provisions of Article 83 paragraph (4) letter a) of the same European act.

As such, the operator has been sanctioned with a fine in the amount of 14,823.60 lei (equivalent to 3,000 EURO).

The investigation was initiated following a complaint regarding a possible violation of Regulation (EU) 2016/679.

Thus, personal data (such as: name, surname, email) of a significant number of data subjects who participated in a raffle organized by the shopping center were displayed on the website belonging to Veranda Obor S.A.

During the investigation, it was found that the operator had not implemented appropriate technical and organizational measures to ensure a level of security commensurate with the risk of processing, including the ability to ensure the confidentiality of the processing systems and services. This incident led to unauthorized disclosure or unauthorized access to the personal data processed and stored by displaying them on the website of Veranda Obor S.A., even though, according to Article 5 paragraph (1) letter f) of the GDPR, it had the obligation to process personal data in a manner that ensures their adequate security, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by taking appropriate technical or organizational measures ("confidentiality").

****Legal and Communication Department****

****N.A.S.P.D.C.P****